

#	Case Name	Tentative
50.	Donovan v. Taft 2021-01225158	Attorneys Gina M. Austin/Tamara Rozmus of Austin Legal Group's motion to be relieved as counsel of record for defendant Robert Taft is DENIED without prejudice. An attorney seeking to be relieved must use Judicial Council forms when seeking court approval for withdrawal. California Rules of Court, Rule 3.1362 specifically require that "[t]he motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052)." Ca. Rules of Court, Rule 3.1362. Although the moving attorneys may have good cause for the requested relief, the Mandatory Judicial Council form was not utilized. As such, the court has no choice but to deny the motion without prejudice. Attorney Gina Austin shall give notice of this ruling.
51.	Valvano v. Hurtado 2025-01515962	The motion of attorney Victoria E. Edwards to be relieved as counsel of record for defendant Jeffrey B. Moreno is DENIED without prejudice. The motion and declaration are not signed by attorney Edwards. As a result, there is no evidence in support of the motion. In the event counsel seeks to refile this motion, counsel should also expressly address the status of the law firm of Adams & Reese, LLP and any other attorneys from that firm, in the event they also seek to be relieved as counsel. Moving attorney shall give notice of this ruling.
52.	J.C. v. Marriott International, Inc. 2025-01530620	Defendant Marriott International, Inc. erroneously sued and served as Anaheim Marriott Hotel's demurrer to the Complaint is OVERRULED. A motion to strike (not a demurrer), is the proper vehicle to challenge an allegedly improper remedy. (<i>Kong v. City of Hawaiian Gardens Redevelopment Agency</i> (2002) 108 Cal.App.4th 1028, 1047 ["a demurrer cannot rightfully be sustained ... to a particular type of damage or remedy"]; <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682 ["demurrer does not lie to a portion of a cause of action"].) Defendant's motion to strike punitive damages allegations is GRANTED, with leave to amend. (Code Civ. Proc., §§ 435, 436 [authorizing motion]; Civ. Code., § 3294 [authorizing